

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS MARCH TERM, A. D.2026

BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR. CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HER HONOR : CEANEH D. CLINTON-JOHNSON ... ASSOCIATE JUSTICE
BEFORE HIS HONOR: BOAKAI N. KANNEH..... ASSOCIATE JUSTICE

Rosalyn Bassey and all those acting and)
operating under her control and are occupying)
the premises of Mr. Austin Clarke, all of the city)
of Paynesville, Monrovia, Liberia)
.....APPELLANTS)
) APPEAL
VERSUS)
)
Austin D. Clarke, Sr. of the city of Paynesville,)
Monrovia, Liberia..... APPELLEE)

GROWING OUT OF THE CASE:

Austin D. Clarke, Sr. of the city of Paynesville,)
Monrovia, Liberia.....PLAINTIFF)
)
VERSUS) ACTION OF
) EJECTMENT
Rosalyn Bassey and all those acting and)
operating under her control and are occupying)
the premises of Mr. Austin Clarke, all of the city)
of Paynesville, Monrovia, Liberia)
..... DEFENDANTS)

Heard: March 30, 2026 Decided: August 28, 2026

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

Mr. Austin D. Clarke, Sr., Plaintiff/Appellee herein, filed a seven-count complaint in the Sixth Judicial Circuit Court for Montserrado County, Monrovia, Liberia, against Madam Rosalyn Bassey and all those acting under her control, Defendants/Appellants herein. The appellee alleged that he owned and possessed a one-acre parcel of land located in the Catherine Mills Rehabilitation Community, City of Paynesville, which he acquired through an honorable purchase from the late James J. Cooper in 1985.

The appellee further averred that after acquiring the property, he constructed a six-bedroom dwelling there and resided there for many years until the outbreak of the civil war in 1990. He alleged that when peace was restored in Liberia, he married the appellant (whose name was later changed to Rosalyn Clarke) in 1998, and they cohabited as husband and wife for some time. However, the appellant allegedly engaged in certain incompatible acts that the appellee later discovered. According to the appellee, the appellant subsequently packed her belongings, left the matrimonial home, and filed an action for divorce against him. The appellee further contended that, although he was a victim of the appellant's incompatible acts, he made every reasonable effort through family members and friends to preserve the marriage. However, the appellant remained resolute in her decision to terminate the relationship. Following a hearing, the Sixth Judicial Circuit Court for Montserrado County, on January 23, 2007, dissolved the matrimonial bond existing between the parties, and a Bill of Divorcement was thereafter issued. The appellee also alleged that, prior to the dissolution of the marriage, the appellant repeatedly stated during several family meetings that all she desired was a divorce and that she had no claim to any property because the parties had not jointly acquired any property during the marriage. He further averred that, several years after the divorce, the appellant encountered financial hardship and had no place to live. Consequently, in 2011, she enlisted the assistance of family members and friends to plead with the appellee to allow her and their children to return to his residence. The appellee, acting out of compassion, agreed and permitted the appellant and the children to move back into the house.

The appellee further alleged that, while residing in the house, disputes arose between the parties. He subsequently received information that the appellant was planning actions that could expose him to serious trouble or even endanger his life. Based on this information, he vacated the premises and relocated to another area. According to the appellee, in February 2013, desiring to regain possession of his residence, he contacted family members to persuade the appellant to vacate the premises. During a family meeting convened for that purpose, the appellant allegedly requested US\$2,000.00 to facilitate her relocation. The appellee asserted that he

provided the requested amount; however, notwithstanding receipt of the funds, the appellant refused to vacate the premises, claiming that she had nowhere else to relocate. The appellee maintained that the appellant's refusal to vacate necessitated the institution of the present action of ejectment. The appellee, therefore, prays that the court oust and evict the appellant from the premises and place him in possession.

On July 22, 2015, the appellants filed a fourteen-count answer. They alleged that the property in question was jointly owned and was deeded to both Austin D. Clarke, Sr., and Rosalyn B. Clarke. Accordingly, they contended that the appellee lacked the legal capacity to institute and maintain the action against the defendants, who included his former wife and their four children. The appellants admitted that the appellee purchased the property from the late James J. Cooper in 1985. However, they asserted that on February 14, 2006, the appellee conveyed title to the property to one Esther Rufus. They further alleged that approximately eight months later, Esther Rufus conveyed title to both the appellee and the co-appellant, Rosalyn B. Clarke. According to the appellants, the deed from Esther Rufus to the appellee and co-appellant was duly probated and registered on September 29, 2006. The appellants, therefore, contended that the appellee's Exhibit P/1 was a legal nullity and that an action of ejectment would not lie where title to real property and the right to possession are disputed. They maintained that the property was jointly owned by the appellee and co-appellant and that, notwithstanding their divorce in January 2007, the co-appellant remained entitled to a fifty percent (50%) interest in the property. Consequently, they argued that ejectment was not the proper remedy and that the appropriate action would be a petition for the division of marital property.

The appellants further asserted that no matter how many witnesses the appellee might produce, the deed from Esther Rufus to the appellee and co-appellant constituted clear evidence of their joint ownership of the property. They alleged that the appellee voluntarily abandoned the marital home, consistent with what they characterized as his irresponsible conduct as a husband and father. They denied receiving any relocation money from the appellee and maintained that they refused to vacate the premises

because the property did not belong exclusively to the appellee but was jointly owned. Additionally, the appellants alleged that the appellee's complaint had damaged their reputation and, on that basis, they counterclaimed for damages in the amount of US\$1,000,000.00. They therefore prayed that the trial court deny and dismiss the complaint.

In his reply, the appellee reaffirmed the allegations contained in his complaint and denied that the property was jointly owned. He specifically denied ever conveying title to Esther Rufus or that Esther Rufus subsequently conveyed title to both himself and the appellant. The appellee characterized those assertions as fabrications orchestrated by the co-appellant. The appellee further alleged that, because of the fraudulent nature of the purported deed and the false claims advanced by the co-appellant, Madam Esther Rufus executed a sworn statement declaring that she had neither executed nor signed any transfer deed conveying the property to Austin D. Clarke and Rosalyn B. Clarke. The appellee maintained that ejectment was the proper action because the property was not jointly owned by him and the co-appellant. Accordingly, he prayed the trial court to deny and dismiss the appellants' answer and render judgment in his favor.

When pleading rested, and while the matter was pending before the court, the appellee died on July 6, 2018. Consequently, a motion for substitution of party was filed, heard, and granted. Following the disposition of the pretrial motions and the determination of the issues of law, the case was ruled to trial on the merits.

During the trial, the appellee produced two witnesses: Madam Bernice R. Clarke, Administratrix of the Intestate Estate of Austin D. Clarke, Sr., and Madam Esther Rufus.

The appellee's first witness, Bernice R. Clarke, testified that she is the biological daughter of the late Austin D. Clarke, Sr. She stated that she knew the co-appellant, Rosalyn Bassey, as her father's former wife and that the parties were divorced in 2007. Regarding the disputed property, the witness testified that her late father acquired the property in 1985 with financial assistance from his mother, Hannah Jannet Clarke. According to

the witness, the property was developed by her father and served as the family residence for many years prior to the civil war. The witness further testified that, following the war, her father repaired the damaged structure and resumed occupancy of the property. She recounted several disputes between her father and the co-appellant, including incidents that ultimately resulted in the appellee leaving the premises. According to her testimony, the co-appellant requested and received the sum of US\$2,000.00 from the appellee as relocation assistance but nevertheless refused to vacate the property. The witness further stated that it was only after receiving the relocation money that the co-appellant began claiming an ownership interest in the property. Bernice R. Clarke also testified that she was in possession of the original deed to the disputed property, which reflected ownership solely in the name of her late father. At the conclusion of her testimony, she was cross-examined by the defense and thereafter discharged from the witness stand.

The appellee's second witness, Madam Esther Rufus, testified that she knew both Austin D. Clarke and Rosalyn Bassey. She acknowledged that the signature appearing on the affidavit attached to the appellee's complaint was her genuine signature. However, she unequivocally denied ever purchasing land from Austin D. Clarke or conveying any interest in land to Austin D. Clarke and Rosalyn Bassey. She further testified that the signature appearing on the deed relied upon by the appellants was not her signature. Following cross-examination by the defense, the witness was discharged.

The appellants likewise produced two witnesses: Kelvin Etim Clarke and Wilhelmina Freeman.

Kelvin Etim Clarke, the appellants' first witness, testified that he is the son of both the late Austin D. Clarke and Rosalyn Bassey. He stated that the property in dispute was substantially damaged during the Civil War and that both his mother and father contributed to its reconstruction. According to the witness, his mother obtained employment with the United Nations and used part of her earnings to assist in rebuilding the property. The witness further testified that marital difficulties arose between his parents, eventually resulting in divorce proceedings. He claimed that, in 2006, his

father showed family members two deeds concerning the property: one allegedly conveying the property from Austin D. Clarke to Esther Rufus and another allegedly conveying the property from Esther Rufus to Austin D. Clarke and Rosalyn Bassey. The witness maintained that both deeds were signed, probated, and registered.

Kelvin Clarke further testified that, despite the divorce proceedings, his parents later reconciled and resumed living together. According to him, his father eventually left the residence voluntarily and thereafter instituted legal proceedings seeking to remove the co-appellant and the children from the property. The witness stated that the litigation continued until his father's death.

The appellants' second witness, Wilhelmina Freeman, testified that she knew both Austin D. Clarke and Rosalyn Bassey through a mutual acquaintance and had become a close family friend. She stated that Austin Clarke once showed her two deeds allegedly reflecting transfers from Austin Clarke to Esther Rufus and from Esther Rufus to Austin Clarke and Rosalyn Bassey. The witness further testified that she frequently acted as a mediator in disputes between the parties and made several attempts to reconcile them during periods of marital discord. According to her testimony, subsequent disagreements ultimately resulted in Austin Clarke leaving the family residence and later filing an ejectment action against Rosalyn Bassey and the children. She also testified that she assisted the co-appellant and Kelvin Clarke when they were arrested by police by posting bond on their behalf.

Following the testimony of Wilhelmina Freeman and the introduction of documentary evidence, the appellants rested their case.

Following the presentation of arguments by the parties, the trial judge duly charged the jury and sent them to deliberate. Thereafter, the jury returned a unanimous verdict finding the appellants liable. The appellants subsequently filed a motion for a new trial, which was heard and denied by the trial court. Thereafter, the trial judge entered final judgment affirming the unanimous verdict of the jury and ordered that the appellants be ousted and evicted from the premises that are the subject of this dispute. The

appellants excepted to the judgment, announced an appeal, and perfected the same in accordance with the appeal statute.

The decisive question in every action of ejectment rests upon the contest of title and whether either party has established a valid title to the disputed property as against the other. The resolution of this issue necessarily depends upon an evaluation of the respective title documents and evidence produced by the parties. In the instant case, we must determine whether the trial judge erred in affirming the unanimous verdict of the jury that the appellee's claim was superior to that of the appellants.

The records reveal only one germane issue of fact, namely: whether the appellee conveyed title to Madam Esther Rufus and whether Madam Esther Rufus subsequently conveyed title to the appellee and co-appellant with respect to the disputed property. This forms the cornerstone of the appellants' theory of the case. There is no dispute that the property was originally purchased and owned in fee simple by the appellee. The appellee produced into evidence a deed executed by the late James J. Cooper in favor of Austin D. Clarke in 1985. The authenticity of this deed was not challenged by the appellants. Conversely, the appellants introduced a deed allegedly executed by Esther Rufus in favor of Austin D. Clarke and Rosalyn Bassey on February 14, 2006, which was vigorously contested by the appellee.

The testimony of the appellants' first witness confirmed that the property was originally owned by the appellee in fee simple. The appellants' second witness, however, made no reference to the ownership of the property. Her testimony was limited to efforts she undertook to reconcile the appellee and the co-appellant during periods of marital discord.

As reflected by the records, the appellants failed to produce any witness with personal knowledge of the alleged transfer of the property into the joint names of the appellee and the co-appellant. The appellants' first witness testified that, in 2006, his father, the appellee, brought two deeds relating to the property and showed them to members of the family. According to the witness, one deed reflected a transfer from Austin D. Clarke to Esther Rufus, while the other reflected a transfer from Esther Rufus to Austin D.

Clarke and Rosalyn Bassey. The witness further testified that both deeds were signed, probated, and registered. However, this testimony does not establish that Madam Esther Rufus actually conveyed the disputed property to the appellee and co-appellant. At best, the testimony merely supports the appellants' assertion that documents purporting to effect such transfers existed. Whether the transfers were genuine and legally effected could only be established through the testimony of the alleged transferor or other persons who witnessed the transaction.

Significantly, Esther Rufus herself testified during the trial. Although the appellants relied on a deed purportedly executed by her, she unequivocally testified that she knew both the appellee and the co-appellant, Rosalyn Bassey, but that she never purchased any land from Austin D. Clarke. She further testified that she never executed or transferred any deed conveying land to Austin D. Clarke and Rosalyn Bassey and that the signature appearing on the deed relied upon by the appellants was not her signature. The law in force provides that "all admissions made by a party himself or by his agent acting within the scope of his authority are admissible." Civil Procedure Law, Rev. Code 1:25.8(1); *In re: Gibson v. Dennis*, 40 LLR 698 (2001).

This Court has consistently held that where statements are made, or evidence is presented, either in the pleadings or through the testimony of witnesses, which are adverse to a party's interest and require rebuttal, the failure of that party to produce rebutting evidence or witnesses warrants the inference that the evidence presented is true. In *Wien et al. v. Republic*, 30 LLR 71 (1982), this Court held that the failure to deny or rebut a material fact within one's knowledge, previously testified to against him, warrants the inference that such fact is true. See also *Jackley v. Siaffa*, 42 LLR 3 (2004); and *Davies v. Republic*, 27; 40 LLR 659 (2001). It is a well-established principle of law that in an action of ejectment, the plaintiff must recover on the strength of his own title and not on the weakness of his adversary's title. However, the law likewise recognizes that once the plaintiff has established title to the disputed property, the burden shifts to the defendant to controvert the plaintiff's evidence by demonstrating a title superior to that of the plaintiff or otherwise showing that the plaintiff is not

entitled to possession of the property. See *Dasusea and Kargou v. Coleman*, 36 LLR 102, 103 (1989).

In the case before us, the appellee established a valid fee simple title to the disputed property. Consequently, it became incumbent upon the appellants to produce competent and credible evidence establishing a superior title. Having failed to do so, the appellants cannot prevail merely by attacking the appellee's title or relying upon unsupported claims of joint ownership. Consequently, the testimony of Esther Rufus directly contradicted and substantially undermined the appellants' claim that title to the disputed property had been validly transferred to both the appellee and the co-appellant.

In the instant case, the appellee presented clear and convincing evidence of fee simple title to the disputed property, thereby rebutting the co-appellant's claim of joint ownership and any alleged right of survivorship. This Court has consistently held, and continues to hold, that in an action of ejectment, particularly where title is in dispute, the plaintiff must recover on the strength of his own title and not on the weakness of his adversary's title. *Gibson et al. v. Jones*, [1929] LRSC 3; 3 LLR 78, 84 (1929). Under the statutes governing actions of ejectment, it is provided that: "Any person who is rightfully entitled to the possession of real property may bring an action of ejectment against any person who wrongfully withholds possession thereof. Such an action may be brought when the title to the real property, as well as the right to possession thereof, is disputed. A widow may recover her dower in ejectment." Civil Procedure Law, Rev. Code 1:62.1.

This Court has further held that it is the exclusive province of the jury to consider the entire body of evidence, observe the demeanor of the witnesses, assess their credibility, and determine the weight to be accorded to the testimony presented by the parties in support of their respective claims. Where the jury, after considering the evidence, reaches a conclusion supported by sufficient evidence, its verdict should not be disturbed by the Court. This principle is grounded in the long-established rule that the jury is the exclusive judge of the facts and the evidence and, consequently, the exclusive judge of what constitutes the preponderance of

the evidence. *Benson v. Sawyer*, Supreme Court Opinion, October Term, A.D. 2015; *St. Stephen v. Gbedzee*, Supreme Court Opinion, March Term, A.D. 2013; *Forleh et al. v. Republic*, 42 LLR 23 (2004); *Liberian Tractor and Equipment Company (LIBTRACO) v. Perry*, 38 LLR 119 (1995); *Momolu v. Cummings*, 38 LLR 307, 374 (1996); *Munnah and Sommah v. Republic*, 35 LLR 40 (1988); *Gbassage v. Holt*, 24 LLR 293, 296 (1975); and *American Life Insurance Company, Inc. v. Holder*, 29 LLR 143 (1981).

The appellee's evidence was clear, convincing, and corroborated by the records, whereas the appellants failed to produce competent evidence substantiating their claim of joint ownership. Significantly, the alleged transfer of title upon which the appellants relied was expressly denied by Madam Esther Rufus, whom the appellants themselves identified as the transferor of the disputed property. Madam Rufus unequivocally testified that she neither purchased the property from the appellee nor conveyed any interest therein to the appellee and the co-appellant, and further denied the authenticity of the signature appearing on the deed relied upon by the appellants. The jury, having heard the testimony of the witnesses, observed their demeanor, and evaluated the documentary evidence presented by both parties, found the appellee's evidence more credible and returned a unanimous verdict in his favor. Under the circumstances, and the appellee having presented clear and convincing evidence of his fee simple title to the disputed property, thereby refuting the co-appellant's claim of joint ownership and any alleged right of survivorship, the trial judge's final ruling in favor of the appellee ought not to be disturbed. Accordingly, there is no basis to disturb the verdict on the issue of ownership of the disputed property.

Ordinarily, our inquiry would end at this point. However, a review of the records reveals additional matters that warrant this Court's consideration.

The records show that Mr. Austin D. Clarke acquired the disputed property in fee simple prior to his marriage to the co-appellant. During the pendency of the ejectment proceedings, however, Mr. Clarke died intestate before the case could be concluded. Thereafter, Madam Bernice R. Clarke, alleged daughter of the deceased and who resides in the United States of America, traveled to Liberia and obtained Letters of Administration appointing her as

Administratrix of the Intestate Estate of Austin D. Clarke. Relying upon the authority conferred by those Letters of Administration, Madam Bernice R. Clarke filed a motion for substitution of party in order to continue the prosecution of the action on behalf of the decedent's estate. The motion was vigorously resisted by the appellants, who contended, *inter alia*, that Madam Bernice R. Clarke was not the biological daughter of the deceased; that the Letters of Administration were procured through misrepresentation; and that proceedings seeking revocation of those Letters of Administration had already been instituted before the Monthly and Probate Court and remained pending. The records further reveal that the trial court granted the motion for substitution on default after a single notice of assignment.

Notwithstanding these contentions, the more pertinent question before this Court is not the propriety of the substitution itself, but rather the extent to which the final judgment may be enforced. Specifically, the issue is whether the judgment may be executed so as to evict the appellants from the disputed property, or whether the judgment should be limited to a determination of the validity of the parties' respective claims of title. To adequately address this question, a brief summary of the relevant facts is necessary. The appellee acquired the property prior to his marriage to the co-appellant. The parties subsequently divorced, and the appellee thereafter instituted an action of ejectment against the co-appellant and the children residing on the property. During the pendency of the litigation, the appellee died intestate. Following his death, Madam Bernice R. Clarke obtained Letters of Administration, was substituted as party plaintiff, and ultimately prevailed in the ejectment action. The question that therefore arises is whether, following the death of the fee-simple owner, a judgment obtained by the administratrix of his intestate estate may be enforced to the extent of evicting the decedent's surviving children from the property, or whether the effect of the judgment should be limited to declaring the co-appellant's purported deed invalid and confirming that the disputed property forms part of the decedent's intestate estate for distribution according to law.

The determination of whether the judgment of ejectment may be enforced against the appellants requires an examination of the law governing

intestate succession and the duties of an administratrix. The Decedents Estates Law provides that property belonging to a decedent and not disposed of by will or otherwise shall, after the payment of administration expenses, funeral expenses, debts, and taxes, descend and be distributed according to law. Specifically, where the decedent leaves one or more lineal descendants but no surviving spouse, the entire estate shall descend to the children and the issue of any deceased child. Decedents Estates Law, Rev. Code 8:3.2(b). Section 3.4 of the same statute further provides that where the distributees entitled to share in an estate are all of equal degree of kinship to the decedent, they shall take equal shares. Decedents Estates Law, Rev. Code 8:3.4. Thus, where a decedent dies intestate leaving only children as his surviving heirs, each child acquires an equal beneficial interest in the estate, subject to the administration thereof and the payment of lawful obligations.

The law further establishes the order of priority for the issuance of Letters of Administration in intestate proceedings. Chapter 11 of the Decedents Estates Law provides that Letters of Administration shall be granted to qualified distributees in the following order: (a) the surviving spouse; (b) the children; (c) the grandchildren; (d) the father or mother; (e) the brothers or sisters; and (f) other distributees, preference being given to the person entitled to the largest share of the estate.

An administratrix appointed pursuant to these provisions does not acquire ownership of the estate property in her personal capacity. Rather, she serves as a fiduciary charged with preserving, protecting, and administering the estate for the benefit of all persons lawfully entitled thereto. In *Sharpe v. Urey*, [1952] LRSC 20; 11 LLR 251, 256 (1952), this Court held that administrators and executors owe a duty to the estate and its beneficiaries to exercise diligence, good faith, and prudence in all dealings concerning the estate and must not advance their personal interests to the detriment of other heirs or beneficiaries.

Applying these principles to the case before us, it is evident that although Madam Bernice R. Clarke was substituted as party plaintiff in her capacity as Administratrix of the Intestate Estate of Austin D. Clarke, she prosecuted the action not for her exclusive benefit but on behalf of the estate and all

lawful heirs thereof. Consequently, any judgment obtained in favor of the estate cannot be construed as vesting exclusive ownership or possessory rights in the administratrix to the exclusion of other heirs who may be entitled to share in the estate under the laws of intestate succession.

While the evidence supports the jury's determination that the co-appellant failed to establish joint ownership of the disputed property and that the purported deed upon which she relied is invalid, the death of Austin D. Clarke during the pendency of the proceedings materially altered the nature of the relief available. Upon his death intestate, ownership of the property became subject to administration and eventual distribution among his lawful heirs in accordance with the Decedents Estates Law. Accordingly, while the judgment may properly determine the validity of the competing claims of title and confirm that the disputed property forms part of the Intestate Estate of Austin D. Clarke, the enforcement of that judgment must be consistent with the rights of all lawful heirs and beneficiaries of the estate. An administratrix may not utilize the authority of her office to dispossess other heirs from estate property solely for her personal benefit, as such conduct would be inconsistent with the fiduciary obligations imposed by law.

This Court holds that all of the children of the late Austin D. Clarke, whether specifically named in the complaint or not, are beneficiaries of the Intestate Estate of Austin D. Clarke. The records establish that Austin D. Clarke died prior to the final disposition of this matter and left no Last Will and Testament directing the distribution of his property. Consequently, upon his death, the disputed property became subject to administration and distribution in accordance with the Decedents Estates Law. Any determination regarding their respective rights and interests in the property must be made within the framework of the administration and distribution of the estate.

However, the same protection does not extend to the co-appellant Roselyn Bassey. The records show that the co-appellant and the deceased were divorced prior to his death, thereby terminating any marital rights she may have possessed in the property. Moreover, the jury found, and we affirm, that the co-appellant failed to establish any ownership interest in the

disputed property. Having no legal or equitable interest in the property of the deceased, the co-appellant has no lawful basis upon which to remain in possession thereof.

Accordingly, the co-appellant Roselyn Bassey is hereby ordered ousted and evicted from the disputed property. This judgment shall not, however, be construed to authorize the eviction of any child of the deceased whose rights, if any, arise by virtue of their status as beneficiaries of the Intestate Estate of Austin D. Clarke.

WHEREFORE, AND IN VIEW OF THE FOREGOING, the final ruling of the Sixth Judicial Circuit Court for Montserrado County is hereby affirmed. The Clerk of this Court is hereby ordered to issue a Mandate to the court below, commanding the judge presiding therein to resume jurisdiction over the case and give effect to the judgment of this Opinion. Costs are ruled against the co-appellant. AND IT IS HEREBY SO ORDERED.

When this case was called for hearing, Consellor G. Wiefueh Alfred Sayeh of the Sayeh and Sayeh Law Offices appeared for the Appellants and Counsellor M. Walkins Wright of the Wright and Associates Law Firm, Inc. appeared for the Appellee.